

CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM CV-03

FILED BY THE DEFENDANT
REV. 08/2026

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR CLEARWATER COUNTY

ANSWER AND AFFIRMATIVE DEFENSES

The defendant's written response to a complaint

PLAINTIFF	CASE NUMBER (UCN)
VS.	Format: 26-CF-000123 (YY - TYPE - NUMBER)
DEFENDANT	DIVISION
	JUDGE / HEARING OFFICER
Full name of party	CF felony MM misdem. CT crim. traffic TR traffic CC civil SC small claims

HOW TO USE THIS FORM

Respond to every numbered paragraph of the complaint. Anything you do not deny is treated as ADMITTED. Affirmative defenses are reasons you win even if the plaintiff's facts are true - if you do not raise them here, you lose them.

RESPONDING PARTY

DEFENDANT NAME	DATE SERVED WITH COMPLAINT	ANSWER DUE DATE
REPRESENTED BY	BAR NO.	CONTACT HANDLE

PART I - RESPONSE TO ALLEGATIONS

For each numbered paragraph of the complaint, write ADMITTED, DENIED, or WITHOUT KNOWLEDGE. You may group consecutive paragraphs that get the same response.

PART II - AFFIRMATIVE DEFENSES

DEFENSES RAISED

- | | |
|--|--|
| ☐ Statute of limitations has expired | ☐ Comparative negligence of the plaintiff |
| ☐ Assumption of risk | ☐ Failure to mitigate damages |
| ☐ Payment or accord and satisfaction | ☐ Release or prior settlement |
| ☐ Lack of jurisdiction over this defendant | ☐ Improper venue |
| ☐ Insufficient service of process | ☐ Failure to state a cause of action |
| ☐ Sovereign immunity (government defendant) | ☐ Qualified immunity (individual officer) |
| ☐ Officer acted within the scope of duty | ☐ Notice of Claim requirement not satisfied |
| ☐ Consent of the plaintiff | ☐ Act of a third party |

STATEMENT OF EACH AFFIRMATIVE DEFENSE

NUMBER EACH DEFENSE AND EXPLAIN THE FACTUAL BASIS

PART III - COUNTERCLAIM (OPTIONAL)

If you believe the plaintiff owes YOU money arising out of the same events, state your counterclaim here. A separate filing fee applies.

COUNTERCLAIM

STATE THE FACTS AND THE AMOUNT YOU ARE CLAIMING

COUNTERCLAIM AMOUNT	COUNTERCLAIM FILING FEE	JURY TRIAL DEMANDED	THIRD PARTY NAMED

CERTIFICATE OF SERVICE: I certify a true copy of this Answer was furnished to the plaintiff or plaintiff's counsel by the method and on the date stated below.

METHOD OF SERVICE	SERVED ON	DATE OF SERVICE

DEFENDANT OR COUNSEL

PRINTED NAME

DATE

CLERK OF COURT

Filed

PRINTED NAME

DATE